

May 28th, 2021

Attn: Active International Mexico

Mrs. Malu Escudero Alpizar
CEO Active International Mexico

DLG Abogados is honored to provide the following legal service proposal at the request of Active International (AI), after holding a very productive conference with AI executives in which we got a better understanding of their business model and a closer approach towards the applicability of the new Publicity Transparency Bill approved by Congress on April 30th.

1. Relevant experience and credentials of the firm.

DLG Abogados is a law firm that specializes in the interaction of the public and private sector. Whether on areas where enterprises are heavily regulated and in constant interaction with the government (finance, energy, e-commerce, Fintech, pharmaceutical) or when the government is the counterpart, partner or relevant stakeholder in our client's business (infrastructure, public project finance, Public-Private Projects (PPP's) and other joint ventures), notwithstanding our considerable portfolio of clients that are public entities from federal and local government. The firm's motto and vision is to find the legal solution to help our clients execute their business involving government engagement.

Our firm's partners are former public servants that spent over 2 decades occupying some of the highest legal positions in the federal government in Mexico. Even though such experience covers relevant fields of the law such as finance, energy, tax, infrastructure, international law, among others, the following lines will outline and highlight the relevant experience we believe the Client will appreciate. Please feel free to access our website <https://en.dlgabogados.mx/> for further information about the firm and its staff.

The firm. Being a relatively new incorporated firm (2 years) we have already managed to retain a relevant client portfolio which includes: two major banks (top 5), one federal development bank, two local states governments, two major services applications or platforms, a major payment processing network, payment system providers, two of the main financial international organizations, one Energy Investment fund, an electricity plant developer, one national appliance store, construction developer, listed telecommunication company, among others.

The tasks undertaken and legal assistance that DLG provides to its clients go from a range of conventional legal services in their day to day transactions and operations, to innovative law and regulation creation and negotiation process, public-private contract negotiation and policy building.

2. Proposed scope of work.

The political context of the bill is relevant, as the Client and the Firm stated in our previous conversations, the bill has not yet become a law and its publication is still pending. The president has until June 21st to: (i) publish

¹ Mexican Constitution grants a 30 days period of time for the president to publish the law, after it is formally sent by Congress. The Government received the bill on May 12th, that is why the deadline is June 21st for definite publication or June 11th for veto possibility. *JMR*

the law; (ii) veto the law in which Congress can overcome the Executive's observations and then it is mandatory for the former to publish it as a law, or (ii) do nothing and wait to see if Congress demands its publication.

The services herein contained are proposed under the assumption that this bill becomes a law.

Phase 1. Contrast of AI business model with the Bill's definition of "agency".

At a first glance, different players from the advertisement and media sector have informed AI that it is not regarded as an Agency in terms of the Bill. We share this interpretation should prevail. However, it is important that AI has a legal analysis that further sustains such interpretation since this could vary with time due to the novelty of the regulation and our impossibility to foresee how the authority will implement it.

Furthermore, different stakeholders might at some point block or delay deals with misinterpretations of the applicability of the new regulation.

As a preventive measure, we suggest to have a legal analysis that clearly sets out AI's business model and contrasts it to the content of such law. This legal opinion would function before stakeholder as well as in the event of an authority intervention.

The firm would revise legal documentation from relevant transactions, or agreement templates, at the decision of the Client, and also make suggestions of modification in order to escape any doubt of the inapplicability of the law. Furthermore, the document will provide recommendations into the futures as to what sort of wording, activities and services should be avoided in upcoming transactions.

Phase 2. Assist and advise AI in possible regulatory forums before COFECE.

This phase would only be active if COFECE, as the antitrust agency in charge of the application of the law, does not wish to challenge it before the courts.

On this scenario, if said authority opens a public consultation forum for secondary regulation, DLG could assist and accompany AI in making the case for exclusion of applicability and lobbying their unique position within the sector.

Further or parallel services DLG can provide.

DLG can also offer its services to the Client in relevant areas such as transaction advise, whether in commercial law, tax law and legal bookkeeping of the Company.

If the Company is interested in having a long term business relationship with the Firm, we could advise them on their day to day business operation, specially if the bill becomes a law and represents blockers in their rutinary negotiations. This could vary from revising contracts or template modifications, legal implications on specific deals or inventory acquired, etc.

3. Proposed fees.

At DLG, we strongly believe in having the necessary flexibility to tailor our fee structure to our Clients needs and preferences. In that regard, DLG suggests the following hourly fees, with the following features:



Phase one. Hourly rated fees with a *cap* of **\$15,000 USD (fifteen thousand dollars of the United States of America) plus VAT and/or applicable taxes.** This cap will apply from the moment of hiring, through necessary meetings to understand business model, the elaboration of the legal opinion and the review and recommendations to the legal instruments AI uses, in a timeframe of 3 weeks. The deliverables would be in Spanish or English, at the request of the Client, the cap will not apply if translations are requested.

Phase two. Since this phase is still contingent and the workload is unpredictable, we suggest an hourly rate fee scheme.

Alternative: DLG can collaborate alongside AI on a more permanent or steady way in which we could establish a 12 month contract for a monthly fixed fee (*iguala*) of \$2,500 (two thousand and five hundred dollars) plus VAT, in which we would include the services mentioned above in phase one and two, as well as the parallel services suggested. The assumptions and scope of the service would be agreed upon in an engagement letter or services agreement, but would include all legal consultations needed in day to day business, brief legal opinions, review of future contracts, routine advice in decision making, among others. We are aware that the amount of work may vary within time, which is why DLG suggests quarterly revisions to adjust the parameters or amount of the monthly fee.

If the flat fee is chosen, the Company and the firm would proceed to establish assumptions for the scope of work, before signing an engagement letter or services agreement.

For the Client's reference, the DLG hourly rates table for 2021 is the following (VAT not included):

Lawyer	Fees
Partner	500 USD
Sr. Associate	300 USD
Jr. Associate	230 USD
Law Clerk	110 USD

4. Assurances.

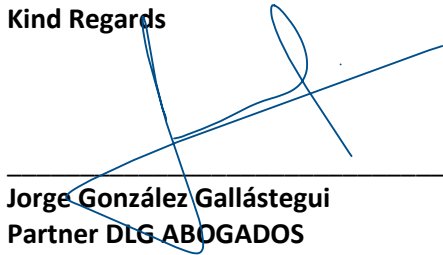
The undersigned, on behalf of the firm, confirms and acknowledges before AI that the eventual representation of the Client by DLG Abogados in this matter will not give rise to any conflict of interest with the government nor with any other person.

Furthermore, we guarantee our Client that all legal services performed by DLG Abogados are protected by Client-attorney privilege under applicable law and the firm ensures such protection by the mandatory compliance of all of its members of the code of conduct available for consultation at our website www.dlgabogados.mx. However, the firm is aware of internal processes of information handling and therefore is completely open to collaborate if the Client requests signatures of NDA's.



We sincerely hope this proposal is in accordance with your needs and expectations and remain at your service for any questions or follow up.

Kind Regards



Jorge González Gallástegui
Partner DLG ABOGADOS



Aceptado
José Manuel Romero Quezadas